

Congress of the United States
Washington, DC 20515

July 28, 2017

The Honorable Betsy DeVos
Secretary
United States Department of Education
400 Maryland Avenue, SW
Washington, DC 20202

Dear Secretary DeVos,

Three years ago, Congress overwhelmingly passed the Workforce Innovation and Opportunity Act (WIOA), and President Obama signed it into law. WIOA streamlined federal workforce development programs and strengthened alignment between local workforce areas and labor markets. Critically, the law was intended to provide support to individuals with disabilities in entering competitive integrated employment and remaining competitive. While passage of WIOA was a landmark bipartisan success, we write today to express concern at your agency's interpretation of the law.

In promulgating regulations and sub-regulatory guidance related to WIOA, the Rehabilitation Services Administration (RSA) created a definition of "integrated settings" in the context of competitive integrated employment. Specifically, in a final rule, the agency lists a number of factors that would disqualify an employer from state referrals.¹ It reiterates these factors in a Frequently Asked Questions (FAQ) document on its website.² These factors include: whether the organization receives funding through the Javits-Wagner-O'Day Act contracts, whether the organization receives allowances under the Fair Labor Standards Act for compensatory subminimum wages, and whether the organization complies with a mandated direct labor-hour ratio of persons with disabilities.³ Not only are these criteria nowhere to be found within the WIOA law, but interestingly, they are specific to the AbilityOne Program. Not surprisingly, the agency's guidance has resulted in AbilityOne organizations experiencing difficulty in placing individuals in jobs around the country.

As you know, the AbilityOne Program is the largest source of employment in the United States for individuals who are blind or have significant disabilities. According to the program's website, AbilityOne allows more than 550 nonprofit groups to employ individuals with disabilities and provide quality products and services to the federal government.⁴ Clearly, AbilityOne does great work around the country and we are puzzled by the RSA's posture on the program.

¹ 34 CFR 361

² U.S. Department of Education, Office of Special Education and Rehabilitative Services. "RSA: Integrated Location Criteria of the Definition of "Competitive Integrated Employment" FAQs." January 18, 2017. <https://www2.ed.gov/about/offices/list/osers/rsa/wioa/competitive-integrated-employment-faq.html#question2>

³ *Id.*

⁴ AbilityOne. "History: The AbilityOne Program Today." http://www.abilityone.gov/abilityone_program/history.html

We have heard from constituents across the country that state vocational rehabilitation agencies have stopped referring individuals with disabilities to AbilityOne employment because they do not have the resources to assess each individual work site to determine whether the workplace is considered to be integrated in the context of WIOA. Nearly 20 states have now implemented policies under which AbilityOne work is no longer eligible for state referrals. Not only does this development threaten the federal government's ability to procure high-quality goods and services, but worse, it limits the ability of individuals with disabilities to find and keep employment.

In closing, we share the goal of competitive integrated employment for people with disabilities. At the same time, we have concerns about the aggressiveness of RSA's final rule and FAQ guidance, especially in light of states' difficulty to properly assess work sites under the guidance. Therefore, we respectfully request that you direct your agency to rescind the above-mentioned portions of its WIOA guidance, and promulgate regulation that considers economic realities across the country, allowing AbilityOne to continue to receive state referrals and placements.

Thank you for your assistance in this matter.

Sincerely,

A handwritten signature in blue ink, appearing to read "Kristi Noem", with a stylized, cursive script.

KRISTI NOEM
Member of Congress



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Member of Congress



KEVIN BRADY (R-TX)
Member of Congress



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Member of Congress



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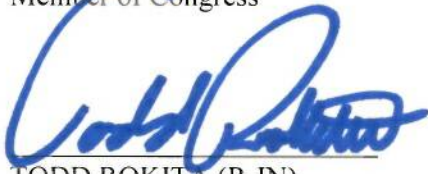
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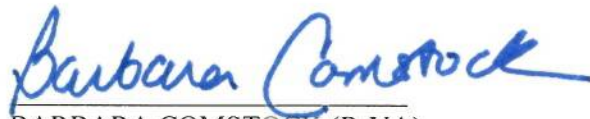
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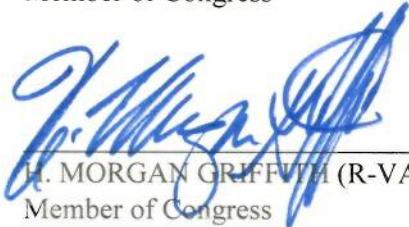
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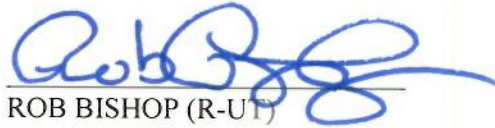
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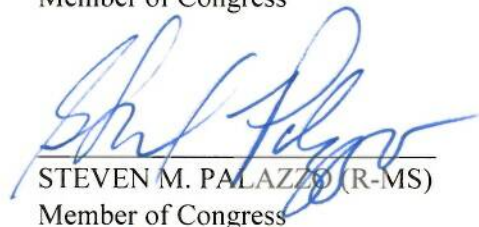
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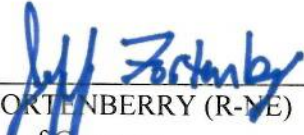
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